

FL-26-000971 DIFEDE VS BLACKWOOD

County: stanislaus

Division: Family Law

Department: 13

Hearing date: 2026-09-14

Motion: Third-Party's Motion re Joinder—HEARING REQUIRED. Because conditionally non-modifiable sole legal and physical custody has been awarded to Petitioner, who has filed a Responsive Declaration opposing joinder and grandparent visitation, and because the parties are unmarried, joinder may not be ordered until the Court first determines whether visitation should be granted over Petitioner's objection, who has a constitutional right to parental autonomy in making decisions regarding the best interests of her minor child. (Fam. Code § 3104(a)(2); Cal. Rules of Court, rule 5.24(e)(1)(B); Local Rules, rule 7.08(B)(2); In re Marriage of Harris (2004) 34 Cal.4th 210, 222.) There is a rebuttable presumption affecting the burden of proof that visitation with Third-Party is not in the best interests of the minor children unless and until Third-Party introduces clear and convincing evidence to the contrary. (Fam. Code § 3104(f); Harris, supra, 34 Cal.4th at p. 248; Rich v. Thatcher (2011) 200 Cal.App.4th 1176, 1181 [clear and convincing evidence burden essential to constitutionality of statutory grandparent visitation over fit custodial parents' objections]; Ian J. v. Peter M. (2013) 213 Cal.App.4th 189, 205-209 [trial court abused discretion in failing to apply clear and convincing evidence standard and to consider "the breadth of circumstances a parent may reasonably consider in deciding to limit or prevent contact with a grandparent"].) That said, Third-Party has filed a Declaration of Supervised Visitation and if Petitioner appears and is willing to entertain any visitation with Third-Party, then the Court may in its discretion refer the matter for further mediation and, if an agreement is reached, then joinder may be granted. It appears that Respondent is out of custody and no production order will be made for this hearing.

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